

payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$17,131.94, plus costs, less any credits for payments received.

The Defendant made payments of \$5,500.

Costs are \$523.61. A memo on costs was filed 11/24/25.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$12,155.55.

Plaintiff shall prepare and submit a proposed order and judgment.

5. 9:00 AM CASE NUMBER: L24-03699
CASE NAME: MERCURY CASUALTY COMPANY VS. JAYLIN LOFTON
***HEARING ON MOTION IN RE: MOTION TO DEEM REQUESTS FOR ADMISSIONS ADMITTED AS TO JANICE ARMSTRONG**
FILED BY: MERCURY CASUALTY COMPANY
TENTATIVE RULING:

Plaintiff filed Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion), along with a Declaration and Memorandum, originally scheduled for 4/21/26. Neither party appeared on 4/21/26, and the motion was continued to 5/12/26.

However, it appears that the court did not provide notice to either party of the 5/12/26, date.

Disposition

The Motion will be continued to 8/11/26, 9am.

The court will notify the parties.

6. 9:00 AM CASE NUMBER: L24-04875
CASE NAME: WESTLAKE SERVICES LLC VS. DAVID SISNEROS
***HEARING ON MOTION IN RE: STRIKE ANSWER TO CROSS-COMPLAINT AND FOR ENTRY OF DEFAULT**
FILED BY: SISNEROS, DAVID
TENTATIVE RULING:

Defendant, and Cross Complainant, has filed a Motion to Strike Plaintiff's, and Cross Defendant's, Answer to the Cross Complaint, as well as a Request for Default Judgment.

Background

The court takes judicial notice of the pleadings filed in this docket.

Cross-Complainant filed the Cross Complaint on 2/28/25. No proof of service on the Cross-Defendant was attached. The docket reflects that no proof of service of the Cross Complaint has ever been filed. The docket entry of 2/24/25, reflects that an attempt to file a Cross Complaint on 12/26/24, was rejected by the Office of the Court Clerk.

Cross-Defendant filed an Answer to the Cross Complaint on 10/31/25.

Analysis

California Rule of Court 3.110 governs the time for service and filings of initial pleadings. Cross-Defendants normally have no more than 30 days within which to respond to a Cross Complaint, otherwise they face the risk of default judgment.

However, this clock is triggered by service of process on the Cross-Defendant, as well as proof of that service. See *CCR 3.110*.

In the instant matter, Cross-Complainant provided, in his Motion, exhibits purporting to show that Cross-Defendant was served with process, none of these exhibits reflect the service of any documents occurring on or after 2/28/25. Thus, there is no evidence of the date on which the Cross Complaint was served, or that the clock for Cross-Defendant to file their Answer ever began.

Cross-Complainant has not met its burden to show that Cross-Defendant failed to file an Answer within 30 days of service of the Cross Complaint.

Disposition

Cross-Complainant's Motion to Strike and Request for Default Judgment are denied.

Cross-Defendant shall prepare and submit the order.

7. 9:00 AM CASE NUMBER: L24-06534

CASE NAME: CITIBANK N.A. VS. MARIA MOJICA

***HEARING ON MOTION IN RE: TO VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF STIPULATED SETTLEMENT**

FILED BY:

***TENTATIVE RULING**

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion